NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(Video Conference)

PRESENT: JUSTICE TELAPROLU RAJANI – MEMBER JUDICIAL
ATTENDANCE-CUM-ORDER SHEET OF THE HEARING HELD ON 16.11.2022 AT 10.30 AM

TC/CP. Nos.	CA/IA No.	Section/ Rule	Name of Parties
CA(CAA)/7/230/AMR/2022	IA(Companies Act)/21/2022	Rule 11 of NCLT Rules, 2016	Deepak Nexgen Foods & Feeds Private Limited (Transferor Co.) & Deepak Nexgen Feeds Private Limited (Transferee Company)

Counsel for Petitioner(s):

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

Counsel for Respondent(s):

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

ORDER

IA(Companies Act)/21/2022 is allowed, vide separate orders.

Sd/-
JUSTICE TELAPROLU RAJANI
MEMBER JUDICIAL

NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH AT MANGALAGIRI
*** *** ***

IA (Companies Act) No. 21/2022
IN
CA (CAA) No. 7/230/AMR/2022

Under Rule 11 of NCLT Rules read with Section 230 and 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation

BETWEEN:

M/s. Deepak Nexgen Foods & Feeds Private Limited,
Having registered office at #40-2-29,
Siddhartha Apartments, Siddhartha Nagar,
Mogalrajpuram, Vijayawada, Krishna Distirct-520010.

.... 1st Applicant/Transferor Company

AND

M/s. Deepak Nexgen Feeds Private Limited,
Having registered office at #40-2-29,
Siddhartha Apartments, Siddhartha Nagar,
Mogalrajpuram, Vijayawada,
Krishna -520010.

... 2nd Applicant/Transferee Company

Date of pronouncement of Order: 16.11.2022

CORAM:

Justice Telaprolu Rajani, Member Judicial

Appearance:

For the Applicant : Mr. Prashant Kumar Jain &
Ms. Anitha Baid, Advocates

CORRIGENDUM ORDER

1. This Application is filed by the Applicant Companies under Rule 11 of NCLT Rules read with Section 230 and 232 of the Companies Act, 2013 seeking to amend the time and venue of meeting of Trade Creditors of the Applicant Companies and to consider the quorum of meeting of all the relevant Trade Creditors of the Applicant Companies.

2. It is brought to the notice of the Adjudicating Authority that earlier the Application i.e., CA (CAA) No.7/230/AMR/2022 was allowed on 21.10.2022 with regard to the dispensation of convening meetings of the Secured and Unsecured Creditors of the Applicant Companies and a corrigendum order was passed on 04.11.2022 giving directions for convening meeting of the Trade Creditors of the Applicant Companies on 20.12.2022 at 11.00 AM at the registered office of the Applicant Companies. The petitioner omitted to mention the time, venue and quorum of the meeting of Trade Creditors of the Applicant Companies.

3. In exercise of powers conferred under Rule 154(1) of the National Company Tribunal Rules, 2016 the following modifications with regard to the convening the meeting of the Trade Creditors of both the Applicant Companies as per Section 230 to 232 of the Companies Act, 2013, this Tribunal makes the following order:-

a) A meeting of the **Trade Creditors** of the 1st **Applicant Company** shall be held on **20.12.2022 at 11.00 AM,** at Rs.No.67/2, Koyyuru Road, Bommuluru (Village), Bapulapadu (Mandal), Hanuman Junction (Post), Krishna District, Andhra Pradesh - 521105 for the purpose of considering and if, thought fit, approving with or without modification(s) the arrangement embodied in the Scheme.

b) A meeting of the **Trade Creditors** of the 2nd **Applicant Company** shall be held on **20.12.2022 at 12.00 PM,** at Rs.No.53/1, Koyyuru Road, Bommuluru (Village), Bapulapadu (Mandal), Hanuman Junction (Post), Krishna District, Andhra Pradesh - 521105 for the purpose of considering and if, thought fit, approving with or without modification(s) the arrangement embodied in the Scheme.

c) The meetings of Trade Creditors of the Applicant Companies shall be conducted with the quorum as per provisions of Section 230(6) of the Companies Act, 2013.

Section 230(6) of the Companies Act, 2013 is produced hereunder for ready reference:

"(6) Where, at a meeting held in pursuance of sub-section (1), majority of persons representing three-fourths in value of the creditors, or class of creditors or members or class of members, as the case may be, voting in person or by proxy or by

postal ballot, agree to any compromise or arrangement and if such compromise or arrangement is sanctioned by the Tribunal by an order, the same shall be binding on the company, all the creditors, or class of creditors or members or class of members, as the case may be, or, in case of a company being wound up, on the liquidator and the contributories of the company."

4. Rest of the contents of the order dated 21.10.2022 and corrigendum order dated 04.11.2022 remain the same. This Corrigendum Order to be read along with the original Orders.

Sd/-
JUSTICE TELAPROLU RAJANI
MEMBER JUDICIAL

Swamy Naidu